

BREYER, J., dissenting

that it would narrow *Bivens*' existing scope. In fact, to diminish any ambiguity about its holdings, the Court set out a framework for determining whether a claim of constitutional violation calls for a *Bivens* remedy. See *Wilkie, supra*, at 549–550. At step one, the court must determine whether the case before it arises in a “new context,” that is, whether it involves a “new category of defendants,” *Malesko, supra*, at 68, or (presumably) a significantly different kind of constitutional harm, such as a purely procedural harm, a harm to speech, or a harm caused to physical property. *If the context is new, then* the court proceeds to step two and asks “whether any alternative, existing process for protecting the interest amounts to a convincing reason for the Judicial Branch to refrain from providing a new and freestanding remedy in damages.” *Wilkie*, 551 U.S., at 550. *If there is none, then* the court proceeds to step three and asks whether there are “any special factors counselling hesitation before authorizing a new kind of federal litigation.’” *Ibid.*

Precedent makes this framework applicable here. I would apply it. And, doing so, I cannot get past step one. This suit, it seems to me, arises in a context similar to those in which this Court has previously permitted *Bivens* actions.

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The context here is not “new,” *Wilkie, supra*, at 550, or “fundamentally different” from our previous *Bivens* cases, *Malesko, supra*, at 70. First, the plaintiffs are civilians, not members of the military. They are not citizens, but the Constitution protects noncitizens against serious mistreatment, as it protects citizens. See *United States v. Verdugo-Urquidez*, 494 U.S. 259, 271 (1990) (“[A]liens receive constitutional protections when they have come within the territory of the United States and developed substantial connections with this country”). Some or all of the plaintiffs